

FORM 31 THE PATENTS ACT, 1970 (39 OF 1970) AND THE PATENTS RULES, 2003 GRACE PERIOD [See section 31 and rule 29A]		
1. Name, address, nationality, and application number.	I/ We, the applicant, in respect of application number....., filed on hereby claim the benefit of grace period provided under section 31.	
2. Applicable provision	☐ Section 31(a) ☐ Section 31(b) ☐ Section 31(c) ☐ Section 31(d)	
3. Documents to be submitted as evidence. Note: Evidence may also include an affidavit	(i) Section 31(a)	With reference to: a) the earliest date of display or use BOX FOR DDMMYYYY; and b) that the display occurred with the consent of the true and first inventor or a person deriving title from him; and YES NO c) that the display occurred at an industrial or other exhibition to which the provisions of this section have been extended by the Central Government by notification in the Official Gazette; the following documentary evidence is submitted:
	(ii) Section 31(b)	With reference to: a) the earliest date of publication or use; b) the documentary evidence in respect of section 31(a) above; and c) the documentary evidence to the effect that the publication of any description of the invention occurred in consequence of the display or use of the invention as stated in section 31(b); the following documentary evidence is submitted:
	(iii) Section 31(c)	With reference to: a) the earliest date of use; b) the documentary evidence in respect of section 31(a) or section 31(b) as mentioned above; and

		c) the documentary evidence regarding use of the invention as stated in section 31(c); and d) the documentary evidence or affidavit that the use of the invention occurred without the consent of the true and first inventor or a person deriving title from him; the following documentary evidence is submitted: 	
	(iv) Section 31(d)	With reference to: a) the earliest date of description or publication; b) the description of the invention in a paper read by the true and first inventor before a learned society; c) the description of the invention published by the true and first inventor or with his consent in the transactions of a learned society; the following documentary evidence is submitted: 	
4. Undertaking	That my invention was in the public domain from DDMMYYYY and this application is made not later than 12 months from that date (earliest date as stated above in respect of section 31(a), 31(b), 31(c), or 31(d)).		
	The facts and matters stated above are true to the best of my/ our knowledge, information and belief. Dated this day of 20.....		
5. To be signed by Applicant / Authorised Agent. Note: Affidavit, if any, shall be signed by the applicant.	Signature(s) To The Controller of Patents, The Patent Office, at		
Note: Select the options that are applicable.			